



CHAPTER 43.

An Act to amend the law with respect to the right of the Crown to claim salvage.

[25th July 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where salvage services are rendered by or with the aid of any ship, aircraft or other property whatsoever belonging to His Majesty, His Majesty shall be entitled to claim salvage for those services, and shall have the same rights and remedies in respect of those services as any other salvor would have had if the ship, aircraft or property had belonged to him.

Right of
the Crown
to claim
salvage.

(2) Where salvage services are rendered by or with the aid of any requisitioned ship or aircraft, the ship or aircraft shall be treated, for the purpose of any claim in respect of those services, as belonging to His Majesty and not as belonging to any other person :

Provided that this subsection shall not apply if, under any agreement made on behalf of His Majesty in connection with the requisition, salvage earned by the ship or aircraft is for the benefit of some person other than His Majesty.

2 & 3 Geo. 6.
c. 62.
10 & 11
Geo. 5. c. 80.

(3) In this section the expression "requisitioned ship or aircraft" means a ship or aircraft which for the time being is in the possession of, or at the disposal of, any person on behalf of His Majesty, by virtue of the exercise of any power conferred by regulations made under the Emergency Powers (Defence) Act, 1939, or by section seven of the Air Navigation Act, 1920, as amended by any subsequent enactment, or any power exercisable by virtue of the prerogative of the Crown; and the expression "requisition" shall be construed accordingly.

Application
to countries
outside the
United
Kingdom.

2. References in the foregoing section to the Emergency Powers (Defence) Act, 1939, or section seven of the Air Navigation Act, 1920, shall respectively be construed—

- (a) in the application of this Act to any country outside the United Kingdom to which that Act or that section as the case may be has been extended by Order in Council, as a reference to that Act or section as so extended; and
- (b) in the application of this Act to any other country outside the United Kingdom, as a reference to any corresponding enactment in force in that country.

Application
to Northern
Ireland.
40 & 41 Vict.
c. 57.

3. The power to make rules of court under section sixty-one of the Supreme Court of Judicature (Ireland) Act, 1877, as amended by any subsequent enactment, shall include power to make rules for the purposes of this Act.

Short title,
citation,
construc-
tion and
repeal.

4.—(1) This Act may be cited as the Merchant Shipping (Salvage) Act, 1940.

(2) This Act shall be construed as one with the Merchant Shipping Acts, 1894 to 1938, and may be cited together with those Acts as the Merchant Shipping Acts, 1894 to 1940.

(3) The enactments set out in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULE.

Section 4.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
57 & 58 Vict. c. 60.	The Merchant Shipping Act, 1894.	In subsection (1) of section five hundred and fifty-seven, the words from the beginning of the subsection to "service, and".
6 & 7 Geo. 5. c. 41.	The Merchant Shipping (Salvage) Act, 1916.	The whole Act.

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FOR

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